



File No.: EXP202310949

RESOLUTION OF

PROCEEDING OF WARNING

Of the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on July 24, 2023. The complaint is directed against the individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

“(...) the respondent is responsible for two cameras installed on the facade of their residence, which are oriented towards the public road, without any prior administrative authorization for this and without being properly signposted as a video surveillance area, as the sign does not include information about the data controller and the address to which to direct requests for the exercise of rights (...)”
Images of the sign and the location of the cameras are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 04/08/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Consulting the database of this Agency, it is recorded as at the indicated address on 31/10/23, with no statement having been made to clarify the legality of the system.

THIRD: On October 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On April 9, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

Consulting the database of this agency, the Official Postal Service certifies delivery at the address, received by C.C.C., with ID document DNI ***NIF.2.

FIFTH: On 20/05/24, the attentive collaboration of the State Security Forces and Corps was requested—(...)—to go to the scene of the events at C/ Jorge Juan, 6, to verify the aspects related to the camera system subject to the complaint and report accordingly, with no response having been provided in this regard.

Consulting the database of this Agency, the Official Postal Service confirms that at the indicated address on 29/05/24.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The facts arise from the complaint dated 24/07/23, through which the presence of a video surveillance

system that may be improperly oriented is reported, as well as incomplete regarding the informative sign.

Article 5.1 c) of the GDPR provides as follows:

Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements demanded by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the data controller responsible for the personal data in question.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

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Nor can images of public spaces be obtained with this type of device, as this is the exclusive competence of the State Security Forces and Corps.

Therefore, the capture of images of public spaces by private surveillance cameras must be limited to what is strictly necessary, applying in all cases the principle of proportionality.

It is worth noting that even in the case of a "simulated" camera, it should preferably be oriented towards private space, as it is considered that this type of device can affect the privacy of third parties, who may feel intimidated by it under the belief that they are subject to permanent recording.

Individuals are not allowed to install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

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- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement for entering into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 22, paragraph 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an information device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the information device."

IV

The principle of the presumption of innocence prevents the imposition of an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the imputation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the data subject.

The presumption of innocence must prevail without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidentiary means of the reproached conduct; that the burden of proof corresponds to the accuser, without...

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that no one is obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal.

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), since the exercise of the sanctioning right in any of its manifestations is conditioned by the presentation of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

The commission of the described administrative infraction could not be substantiated, given that the operability of the system in question could not be verified, which could lead to the situation where the system was .

In the indicated direction, the receipt of the document also does not occur by the person identified as the accused, but by a third party, without further explanation in this regard, which complicates the determination of the identity of the person responsible for the installation.

In cases like the one described, this body recommends directing the complaint to the nearest Security Forces and Corps to the place of the events (e.g., Local Police of the locality), who can carry out the necessary inquiries and transfer the investigations conducted back to this Agency or, if applicable, proceed to provide new data related to the installation of the cameras (e.g., photographs with date and time, actual address, identification of new responsible parties (children, spouse, etc.)).

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been accredited,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as the commission of the described infractions has not been accredited.

SECOND: TO NOTIFY this resolution to B.B.B. and inform the complainant of the outcome of the proceedings.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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